

GZ: 2023-0.273.912 dated October 6, 2023 (Case Number: DSB-D124.5337)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical information, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of 1) Dr. Erich A*** (first complainant) and 2) B***labor GmbH (second complainant), both represented by U*** Rechtsanwalts GmbH, dated November 26, 2021 against 1) M*** Verlagsgesellschaft m.b.H. (first respondent), represented by P*** Rechtsanwälte KG, and 2) N*** broadcasting company (second respondent), represented by L*** Rechtsanwälte GmbH, regarding violations of 1) the right to erasure, 2) the right to information, and 3) the right to confidentiality as follows:

I.

The complaint of the second complainant against the respondents regarding a violation of the right to erasure is dismissed.

II.

The complaint of the first complainant against the first respondent regarding a violation of the right to information is partially upheld, and it is determined that the first respondent has violated the first complainant's right to information by failing to provide information on the following processed personal data of the first complainant:

- a. specifically processed (master) data (Art. 15 para. 1 second sentence GDPR);
- b. the purposes of data processing (Art. 15 para. 1 lit. a GDPR);
- c. the categories of personal data that are processed (Art. 15 para. 1 lit. b GDPR);
- d. recipients or categories of recipients (Art. 15 para. 1 lit. c GDPR);
- e. if possible, the planned duration for which the personal data will be stored, or if this is not possible, the criteria for determining this duration (Art. 15 para. 1 lit. d GDPR).

III.

The first respondent is ordered to provide the first complainant with the following information within a period of four weeks, under penalty of enforcement:

- a. specifically processed (master) data (Art. 15 para. 1 second sentence GDPR);
- b. the purposes of data processing (Art. 15 para. 1 lit. a GDPR);
- c. the categories of personal data that are processed (Art. 15 para. 1 lit. b GDPR);
- d. recipients or categories of recipients (Art. 15 para. 1 lit. c GDPR);
- e. if possible, the planned duration for which the personal data will be stored, or if this is not possible, the criteria for determining this duration (Art. 15 para. 1 lit. d GDPR).

IV.

The complaint of the second complainant against the first respondent regarding a violation of the right to information is upheld, and it is determined that the first respondent has violated the second complainant's right to information by failing to respond to their related request.

V.

The first respondent is ordered to fulfill their obligation to respond to the second complainant within a period of four weeks, under penalty of enforcement, in accordance with Art. 12 para. 3, Art. 15 para. 1 GDPR in conjunction with § 1 para. 3 no. 1 DSG.

VI.

The complaint of the first complainant against the second respondent regarding a violation of the right to information is partially upheld, and it is determined that the second respondent has violated the first complainant's right to information by failing to provide information on the following processed personal data of the first complainant:

- a. specifically processed (master) data (Art. 15 para. 1 second sentence GDPR);
- b. the purposes of data processing (Art. 15 para. 1 lit. a GDPR);
- c. the categories of personal data that are processed (Art. 15 para. 1 lit. b GDPR);

- d. recipients or categories of recipients (Art. 15 para. 1 lit. c GDPR);
- e. if possible, the planned duration for which the personal data will be stored, or if this is not possible, the criteria for determining this duration (Art. 15 para. 1 lit. d GDPR).

VII.

The second respondent is ordered to provide the first complainant with the following information within a period of four weeks:

- a. specifically processed (master) data (Art. 15 para. 1 second sentence GDPR);
- b. the purposes of data processing (Art. 15 para. 1 lit. a GDPR);
- c. the categories of personal data that are processed (Art. 15 para. 1 lit. b GDPR);
- d. recipients or categories of recipients (Art. 15 para. 1 lit. c GDPR);
- e. if possible, the planned duration for which the personal data will be stored, or if this is not possible, the criteria for determining this duration (Art. 15 para. 1 lit. d GDPR).

VIII.

The complaint of the second complainant against the second respondent regarding a violation of the right to information is partially upheld, and it is determined that the second respondent has violated the second complainant's right to information by failing to respond to their related request.

****Information Violations****

has violated the right to information by failing to provide information regarding the following processed personal data of the second complainant:

- a. Information about the specifically processed (master) data (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 DSGVO)
- b. Information about the purposes of data processing (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 lit. a DSGVO)
- c. Recipients or categories of recipients (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 lit. c DSGVO).

****IX.****

The second respondent is ordered to provide the second complainant with the following information within a period of four weeks:

- d. Information about the specifically processed (master) data (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 DSGVO)
- e. Information about the purposes of data processing (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 lit. a DSGVO)
- f. Recipients or categories of recipients (§ 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 lit. c DSGVO).

****X.****

The complaint of the second complainant against the first respondent regarding an alleged violation of the right to confidentiality is dismissed as unfounded.

Legal bases: Art. 4, Art. 12, Art. 15, Art. 17, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 4, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 31 Federal Act of June 12, 1981 on the Press and Other Public Media (Media Act – MedienG), Federal Law Gazette No. 314/1981 as amended.

****REASONING****

****A. Submissions of the Parties and Procedural History****

1. With an initiating submission dated November 26, 2021, the complainants, represented by U*** Rechtsanwalts GmbH, filed a complaint due to alleged violations of their rights to information and confidentiality by the respondents. The second complainant additionally claimed violations of her right to deletion by the respondents. The first complainant is a doctor and sole managing director of B*** Pharma GmbH, which is the sole shareholder of the second complainant. The second complainant is a company registered as a limited liability company with its registered office in R*** [= name of a federal state]. Its business activities relate to the operation of analysis stations and the conduct of diagnostic

testing procedures, particularly in connection with PCR tests.

The respondents are well-known and influential media houses in Austria, responsible for the content design, production, and distribution of various media. They are media companies under the Media Act. The respondents have been operating a "research community" against the complainants since June 2021 and are attempting to present themselves as "whistleblowers."

Around August 1, 2021, there was a compromise of one of the second complainant's email accounts, which is under the control of the first complainant. This email account contained, among other things, an email with information that was to be backed up. As a result of the compromise of the email account, there was an unauthorized disclosure of a message to the respondents, which the respondents reported on September 1, 2021, in the online editions of their media.

In response to the media coverage by the respondents, the first complainant submitted a request for information to the respondents on September 10, 2021. While the first respondent did not respond at all to the request for information, the second respondent provided an incomplete response on October 11, 2021. The information provided should have at least included those personal data related to the reporting on the compromise of the aforementioned email account of the second complainant.

The second complainant submitted a request for information to the respondents on September 9, 2021. This was only answered by the second respondent, who rejected the request for information citing the media privilege. However, the respondents had already reported more than a month prior about the compromise of an email account within the influence of the second complainant. The purpose of the press reporting was thus evidently achieved. At the time of the request for information to the second respondent, the processing of the second complainant's information in connection with the aforementioned reporting was therefore solely for the purpose of unlawful data retention. The second complainant requested the deletion of the "message" from the respondents on September 2, 2021. Both respondents rejected the deletion request, justifying it almost identically with the blanket application of the media privilege.

Furthermore, the second respondent was informed by the first respondent about both the fact of the deletion request to it and the content of the response to the second complainant. The first respondent thus also violated the second complainant's right to confidentiality. Attached to the complaint were, among other things, an excerpt from the commercial register, of preserving evidence, the second complainant claims a violation of her right to deletion. According to Art. 17 para. 3 lit. e GDPR, the controller is not obliged to delete data if the processing of the data is necessary for the establishment, exercise, or defense of legal claims. It is a notorious fact that media reporting can lead to media law proceedings in which the data reported may serve as necessary evidence. The evidentiary nature of the data is underscored by the second complainant herself, as she justifies her interest in a declaration with regard to her future administrative and civil legal actions. Regardless of the necessity of preserving evidence, the second complainant's assertion of a violation of her right to deletion is unfounded.

8. In conclusion, the second respondent requests that the complaint be dismissed in its entirety and that the requested information not be provided. The second respondent emphasizes that the interests of the second complainant do not outweigh the rights and freedoms of third parties, particularly in light of the protection of journalistic sources and the freedom of expression.

9. The first complainant has not submitted any further statements or evidence in response to the second respondent's comments.

10. The decision of the Federal Administrative Court will be based on the assessment of the arguments presented by both parties, taking into account the applicable legal provisions and the principles of data protection and freedom of expression.

11. The parties will be informed of the decision in due course.

of data retention for evidentiary purposes, the second complainant does not have the authority to determine when the journalistic processing purpose ends. It would make any journalistic research and investigative journalism impossible if a third party could decide when the journalistic purpose has been

fulfilled and thus when the underlying data of the report should be deleted. Therefore, the request for deletion by the second complainant cannot be granted, both in consideration of Art. 17 para. 3 lit. a GDPR and in consideration of Art. 17 para. 3 lit. e GDPR. Furthermore, the DSB holds the view that the right to deletion as stipulated under Art. 17 GDPR does not apply to legal entities in principle (DSB-D123.089/0002-DSB/2018), so the request of the second complainant cannot be followed in this regard either.

8. In a letter dated March 6, 2023, the first respondent, represented by P*** Rechtsanwälte KG, summarized as follows:

It should be noted that the email in question from the first respondent was intentionally made accessible by a person, considering its nature as a media company.

The claims asserted by the first complainant are all unfounded because the right to information is excluded by the editorial secrecy. Even without the application of § 9 para. 1 DSG, the right to information contradicts the fundamental right to freedom of opinion and communication and is therefore excluded under Art. 15 para. 4 GDPR in conjunction with Art. 11 CFR. Furthermore, the first respondent has already provided the first complainant with complete information in accordance with Art. 15 GDPR, to the extent that he has a right to information.

The claims asserted by the second complainant are all unfounded because the fundamental right to data protection under § 1 DSG does not apply between private individuals, the DSB is not competent for complaints by legal entities both according to the wording of the DSG and considering fundamental rights considerations, and there are no enforceable rights to information or deletion for legal entities, as § 1 para. 3 DSG is subject to a reservation of implementation. In any case, there are rights to refuse information to protect the editorial secrecy that is protected by fundamental rights. Moreover, there is certainly no right to deletion because the data processing is lawful and the right to confidentiality has been maintained, as the voting that took place within the research community with the second respondent was lawful.

Attached to the statement was an excerpt from the commercial register, a screenshot of the media report from the first respondent, and an email from the first respondent to the first complainant dated April 15, 2022.

9. In a letter dated April 6, 2023, the complainants, represented by U*** Rechtsanwälte GmbH, essentially replied as follows:

An interpretation of § 24 DSG that only grants natural persons the possibility of filing a complaint with the data protection authority would be discriminatory and thus unconstitutional. The fundamental right to data protection guarantees everyone the right to confidentiality of their personal data, provided they have a legitimate interest in this, particularly with regard to the respect for private life. To enforce against third parties, the rights of the affected individuals to information, rectification, and deletion are guaranteed for everyone.

The respondents deny that an email allegedly sent by the first complainant on August 1, 2021, via an email account of the second complainant constitutes personal data of the second complainant. Due to the fact that the respondents refer to the second complainant in their reporting and name her explicitly, all information underlying the reporting and thus associated with the second complainant is attributable to her. Due to the identifying reporting of the respondents, the information underlying the reporting necessarily also refers to the second complainant.

The request for information from the complainants is substantively unrestricted and thus includes all information provided for in Art. 15 para. 1 and 3 GDPR or § 1 para. 3 Z 1 DSG. The editorial secrecy does not act against the complainants. Accordingly, it cannot constitute a reason for refusal of information. The freedom of opinion and information of the respondents is not made impossible by this. Attached to the statement were a letter from the first respondent dated October 28, 2021, to the first complainant, a letter from the first complainant dated September 10, 2021, to the first respondent, screenshots of the first respondent's website, an email from the first complainant dated February 28, 2023, and a response from the second respondent dated February 28, 2023.

B. Subject of the Complaint

The subject of the complaint is whether

- 1) the respondents have violated the second complainant's right to deletion,
- 2) the respondents have violated the complainants' right to information, and
- 3) the first respondent has violated the second complainant's right to confidentiality by disclosing to the second respondent that the second complainant has made a deletion request to the first respondent. addressed and disclosed the content of the response to this deletion request to the second respondent.

C. Findings of Facts

1. The first complainant is a doctor and sole managing director of B*** Pharma GmbH, FN *6*0*8f, Z**platz 4*, **** H***hausen, which in turn is the sole shareholder of the second complainant. The second complainant is a company registered as a limited liability company with its registered office in R*** [= Name of a federal state]. Its business activities relate to the operation of analysis stations and the conduct of diagnostic testing procedures, particularly in connection with PCR tests.
2. The respondents are well-known and influential media companies in Austria. The first respondent is the publisher of the daily newspaper "M****" as well as the online medium "m***.at". The second respondent represents **** broadcasting corporation of Austria and is responsible for **** TV channels, [Note from the editor: Details regarding the scope of the second respondent's business operations have been removed for pseudonymization reasons] and the n***.at network.
3. Around August 1, 2021, an unsecured Excel file containing PCR test results of several thousand named individuals, which had been sent from the personalized email account of the first complainant, came into the possession of the respondents. This email was made accessible to the respondents by a third party.
4. The first respondent reported on this incident on September 1, 2021, in its online edition (https://www.m***.at/id/*4*7*3/tausende-r***er-pcr-test-ergebnisse***-geleakt, formatting not retained 1:1):

"Thousands of R*** PCR test results leaked with names and data

More than 24,000 positive PCR test results along with personal patient data were sent by Erich A*** via email. He speaks of a 'hacker attack'

More than 24,000 positive PCR test results from R***, from January to June 2021, including patient names, place of residence, birth dates, and details such as the respective virus mutations. These highly sensitive data, which contain prominent names [Note from the editor: here shortened for pseudonymization reasons], are available to M*** and N*** R***. They originate from a massive data leak that raises many questions. Erich A***, former managing director of the criticized company B***labor, allegedly sent this data unencrypted via email in the form of Excel sheets on August 1, 2021. A*** confirms upon request that he did so and explains the leak by stating that he became a victim of a hacker attack. Due to the data leak, he has initiated 'IT forensic investigations.' Until these are completed, he cannot provide any further information on the matter. After that, he will inform the responsible authority and file a criminal complaint.

To whom the data went

Also, the recipient of the email, an IT technician, raises questions. There is a cease-and-desist lawsuit and an application for a preliminary injunction against him. His former employer, the IT company C*, accuses him of unlawfully taking over their self-programmed software for processing PCR test results and now using it without their consent. He does not want to comment on the allegations "for reasons of data protection." He does not have the lawsuit against him.**

C* was originally a partner of B***labor when it received the multi-million contract for PCR testing from the state of R*** in September 2020 without a tender. C*** provided the necessary IT solution for data processing. However, this partnership broke down in May 2021 because B***labor failed to pay invoices amounting to seven figures.**

The state emphasizes that "in principle, all contracting parties are standardly obligated to protect personal and sensitive data." Access or forwarding by external parties is "not known at this time." However, legal action is reserved, and it is "strongly condemned" should this have actually occurred.

****Authority Examines Violation****

****The data protection authority, which was informed about the data leak by M*** and N*** R***, is initiating an examination for potential violations of the General Data Protection Regulation (GDPR), as stated by its deputy director Matthias Schmidl. An administrative penalty procedure is also conceivable. Furthermore, Schmidl explains that all affected individuals listed are entitled to file a complaint with the data protection authority free of charge. This practically includes everyone who tested positive for Corona in R*** between January and June 2021.****

****The state refers to the responsibility of the contracting parties, who are responsible for the implementation and compliance with data protection regulations. However, data protection advocate S*** finds this insufficient: "Where the public sector creates testing offers with taxpayer money, it also has the responsibility to ensure that this is done properly." The GDPR has been applicable European law for years, which must also be adhered to in R***.****

****Governor Remains Silent, Public Prosecutor's Office Investigates****

****Governor [Note from editor: shortened for anonymization reasons] has declined ten interview requests from M*** since May, when the B***labor case broke in the media. Erich A*** and the company B***labor have filed a lawsuit against M*** due to reporting doubts about the quality of their work.****

****The preliminary report from the Economic and Corruption Prosecutor's Office, which is investigating the "initial suspicion of serious fraud" against B***labor, is currently with the Ministry of Justice. The state audit office is examining the awarding without a tender. (***, 1.9.2021)****

****5. The second respondent reported on this incident on September 1, 2021, in its online edition (https://n***.at/r***/content/*4**8, formatting not replicated 1:1):****

*****"Massive Data Leak in Positive CoV Tests"*****

****N*** R*** and "M****" have received data from more than 24,000 positive coronavirus tests from R*** along with the associated personal data. They apparently circulated because Erich A***, the former managing director of B***labor, had sent them in an email. He himself speaks of a hacker attack.****

****Virtually all R*** residents who tested positive for the coronavirus between January and June 2021 can be found in a simple Excel spreadsheet. From name, address, and date of birth to the positive test result and test date: the file includes more than 24,000 test results and the corresponding patient information—highly sensitive data that should actually be particularly well protected, said data protection expert Josef S*** from datenschutz***.info.****

****When such data circulates, it can have serious consequences for those affected. An infection could also lead to a "Long Covid" illness. Lists of positive****

****Test Results Could Deter Potential Future Employers****

Testergebnissen könnten also potenzielle künftige Arbeitgeber abschrecken, aber auch zur Ablehnung bei privaten Krankenkassen führen, meinte S*.**

****Data Leak Caused by Email****

A*, der ehemalige Geschäftsführer der in Kritik geratenen B***labor, soll die Excel-Tabelle selbst in Umlauf gebracht haben. Er dürfte die Daten per Mail an eine firmenexterne Person verschickt haben. Für Datenschutzexperte S*** eine „erschreckende Sorglosigkeit“. A*** selbst stritt das Versenden der Mail auf Anfrage nicht ab. Er habe die Mail am 1*. August zum Zweck eines „Back-up“ verschickt. Sie sei sehr wohl verschlüsselt gewesen, sagte er in einer zweiten, späteren Stellungnahme.**

Weitere Überprüfungen hätten gezeigt, dass es einen „Hackerangriff“ auf sein Mailpostfach gegeben habe. Dazu würden jetzt „IT-forensische Untersuchungen“ durchgeführt. Nach eigenen Angaben will A* nach Abschluss auch die Behörden informieren. Laut Firmenbuch ist A*** seit Juni 2021 nicht mehr Geschäftsführer der B***labor, eine Funktion, die er nach heftiger Medienkritik zurücklegte. Warum er immer noch Zugriff auf diese Gesundheitsdaten hat, beantwortete A*** nicht.**

****Land Condemns Data Sharing "In the Strongest Terms"*****

Das Land R*** erklärte, man habe erst durch die Medienanfrage von dem Datenleck erfahren. Die Daten würden nicht von den Servern oder Dateisystemen des Landes stammen, das sei in der Zwischenzeit überprüft worden, so Gesundheitsdirektor Michael Ü***. Alle Vertragspartner des Landes, also auch die B***labor, seien vertraglich dazu verpflichtet worden, die personenbezogenen und sensiblen Daten zu schützen. Von einer Weitergabe an Dritte wisse man beim Land nichts, man behalte sich aber rechtliche Schritte vor und verurteile so ein Vorgehen „aufs Schärfste“, sagte Ü***.

Ganz aus der Verantwortung zu nehmen sei das Land aber nicht, meinte Datenschutzexperte S***: „So einfach kann man sich nicht abputzen.“ Wo mit Steuergeld Angebote für solche Tests geschaffen werden, trage die öffentliche Hand auch die Verantwortung, dass sauber gearbeitet werde, nicht nur im Hinblick auf die medizinische Seite der Tests, sondern eben auch auf die datenschutzrechtliche Seite. Auch in R*** gelte die Datenschutzgrundverordnung (DSGVO) der EU, so S***.

****Politicians Also Found on the List****

In der Tabelle mit positiv Getesteten finden sich einige bekannte Personen und Politikerinnen und Politiker.

Unter ihnen ist auch Carolina I***, die Obfrau der Ä***partei. Für sie ist das Datenleck ein „handfester Skandal“. Mit Gesundheitsdaten müsse sorgfältig umgegangen werden. Nachdem die Tests unter dem Motto „R*** testet“ stattfinden, hätten sich die R***erinnen und R***er darauf verlassen. Dieses Vertrauen sei jetzt erschüttert, so I***.

Auch der Nationalratsabgeordnete Udo J*** (U***partei) taucht in der Liste auf. Das sei für ihn kein Problem, er habe keine Geheimnisse, so J***. Der Sinn und Zweck von Datenschutz sei aber, genau solche Daten zu schützen. Er könne verstehen, dass das Datenleck für Aufruhr sorgt. Für Peter Fo*** (TU***partei), ebenfalls Betroffener des Datenlecks, ist es „rätselhaft, wie so etwas im Jahr 2021 noch möglich“ ist, nachdem so viel von Datenschutz und Amtsgeheimnissen gesprochen werde. Rechtliche Schritte seien hier dringend anzudenken, so Fo***.

****Examination by Data Protection Authority****

Das Rechercheteam meldete das Datenleck vorab auch an die Datenschutzbehörde. Sie wird eine Prüfung des Falles wegen eines möglichen Verstoßes gegen die Datenschutzgrundverordnung einleiten, sagte der stellvertretende Leiter Matthias Schmidl. Betroffene, also so gut wie alle R***erinnen und R***er, die zwischen Jänner und Juni 2021 positiv auf das Coronavirus getestet wurden, können kostenlos Beschwerde bei der Datenschutzbehörde einlegen.

****Opposition Expresses Outrage****

[Anmerkung Bearbeiter/in: Rest des Medienberichts aus Pseudonymisierungsgründen entfernt.]

6. The second complainant requested the deletion of the "message" from the respondents on September 2, 2021.

7. The first respondent disclosed both the receipt and the content of the response to this deletion request to the second respondent.

The requests were as follows (formatting not retained 1:1):

"As you are already aware, a mailbox of B***Labor GmbH has been compromised, resulting in a violation of the protection of personal data.

I have learned from media reports that your medium is in possession of at least one message from this mailbox.

As the Data Protection Officer of B***Labor GmbH, I hereby request you to delete this (and possibly any other message from the mailbox) immediately, confirm this deletion to me, and refrain from any disclosure to third parties.

If you have already disclosed this or any other message from the mailbox to third parties, I request that you inform me of the recipients. Alternatively, you may inform the recipients yourself and confirm this to me."

8. The respondents - the first respondent on September 3, 2021, and the second respondent on

September 7, 2021 - rejected the deletion, citing the media privilege under § 9 Abs. 1 DSG.

The response from the first respondent also contained the following excerpt (formatting not retained 1:1):

"However, we would like to take this opportunity to ask you as the Data Protection Officer of B***Labor how it is possible that Erich A*** still had access to these patient data in August 2021 and sent them unsecured via email to Mr. Or***? Did he also have access to other sensitive data? What legal actions will you take against Mr. A*** in this matter?"

The second respondent also included the following follow-up questions in the rejection (formatting not retained 1:1):

"- How is it possible that Erich A*** still had access to these patient data in August 2021 and sent them unsecured via email to Mr. Or***?

- Did he also have access to other sensitive data?

- What legal actions will you take against Mr. A*** in this matter?

- What have the internal "IT forensic investigations" revealed?"

9. In a letter dated September 9, 2021, the second complainant requested the respondents to provide information as follows (formatting not retained 1:1, emphasis by the Data Protection Authority):

"We refer to the letter dated September 2, 2021, in which you were requested by B***Labor GmbH to delete all messages from the compromised email mailbox that you reported.

As you have unfortunately not complied with this request, I now request from you on behalf of B***Labor GmbH information regarding which data and trade secrets of B***Labor you are processing for what purpose and to whom these have been or will be transmitted (cf. § 1 Abs 3 Z 1 DSG)."

In a letter dated September 9, 2021, the second respondent replied as follows (formatting not retained 1:1):

"After consulting the situation, the facts are as follows:

Whether the email mailbox was actually compromised or not is beyond our knowledge.

According to § 9 Abs. 1 DSG, which is based on Art 85 GDPR, the provisions of the DSG and the GDPR, with the exception of Chapters I (General Provisions) and VIII (Legal Remedies, Liabilities, and Sanctions), do not apply to the processing of personal data by media owners, publishers, media employees, and employees of a media company or media service for journalistic purposes of the media company or media service.

Thus, the Austrian legislator has balanced the right to protection of personal data on the one hand and the right to freedom of expression and freedom of information on the other.

It is undisputed that the N*** broadcasting company is a media company within the meaning of the Media Act.

Data processing for journalistic purposes is to be understood holistically and encompasses everything from "initial information" to initial publication and beyond. The CJEU understands "journalistic purposes" as activities aimed at "disseminating information, opinions, or ideas (...) in the public domain." (cf. CJEU, judgment of December 16, 2008, C-73/07, Satamedia, para. 61) The Advocate General in this case emphasized the role of a free press as a "public watchdog" to further define the term of journalistic purposes and derived the obligation to "convey information and ideas on all matters of public interest." Editorial processing is not relevant in this regard; even the provision of raw data can contribute to public discussion. The CJEU ultimately adopted this view.

The processing of the data was carried out for journalistic purposes, as it served to disseminate information in the public domain.

From the above, it follows that the DSG and the GDPR do not apply to the present case to the extent mentioned above, which is why there is also no legal claim for data deletion, particularly under Art 17 GDPR.

I am available for any further questions."

The first respondent did not respond to the information request of the second complainant dated September 9, 2021, until the conclusion of the proceedings before the data protection authority.

10. The first complainant submitted the following request in excerpt to the respondents on September

10, 2021 (formatting not retained 1:1):

“Dear Sir or Madam,

I hereby request you to transmit all data available to you regarding my person, invoking Art. 15 GDPR.”

Attached, the first complainant submitted a copy of his photo ID as well as the following requests (formatting not retained 1:1):

1) to the first respondent

[Note by the editor: The request for information reproduced here as a facsimile (in the form of several PDF files) would have required significant effort to pseudonymize and has therefore been removed.]

2) to the second respondent

[Note by the editor: The request for information reproduced here as a facsimile (in the form of several PDF files) would have required significant effort to pseudonymize and has therefore been removed.]

11. The second respondent replied to this letter on October 11, 2021, as follows (formatting not retained 1:1, redactions made by the second respondent):

[Note by the editor: The response letter reproduced here as a facsimile (in the form of several PDF files) would have required significant effort to pseudonymize and has therefore been removed. The content is limited to basic data of the first complainant and data related to a SAT reception card/key card issued for satellite reception of the programs of the second respondent.]

12. The first respondent replied to the first complainant on April 15, 2022, in excerpt as follows (formatting not retained 1:1):

[Note by the editor: The response letter reproduced here as a facsimile (in the form of several PDF files) would have required significant effort to pseudonymize and has therefore been removed. The content is limited to data related to his registration for online services of the first respondent, such as the M*** reader forum.]

13. The first respondent did not respond to the request of the second complainant from September 9, 2021, until the conclusion of the proceedings before the data protection authority.

Evidence assessment: The findings made result from the correspondingly consistent submissions of the parties as well as the documents submitted by them.

D. From a legal perspective, it follows:

D.1. Regarding the case-specific effect

As can be seen from the course of the proceedings, the Federal Administrative Court has submitted an application for judicial review to the Constitutional Court based on the present proceedings, and § 9 para. 1 DSG was annulled by the Constitutional Court due to unconstitutionality, effective from June 30, 2024.

A provision annulled by the Constitutional Court continues to apply to facts realized before its annulment (cf. Art. 140 para. 7 second sentence and Art. 139 para. 6 second sentence B-VG). The annulment of a legal provision by the Constitutional Court thus only has future effect (pro-futuro effect; VfSlg. 1415/1931). Previous facts are to be assessed according to the previous legal situation. Acts of enforcement based on a provision annulled by the Constitutional Court remain unaffected (VfSlg. 3303/1957). The same applies in the event that the Constitutional Court finds that the law or regulation was unconstitutional or unlawful (cf. VfSlg. 10.834/1986, 17.020/2003). The only exception to this principle that is materially justified (VfSlg. 3519/1959, 5141/1965) is the case-specific effect: The case is to be assessed as if the provision deemed unconstitutional had not belonged to the legal order at the time of the realization of the facts to be decided in the case (cf. VfSlg. 3674/1960, 7651/1975). The case is that legal matter which gave rise to the initiation of the norm control procedure (VfSlg. 8234/1978).

Since the present proceedings can be qualified as a case, it is to be decided in substance as if § 9 para. 1 DSG had not belonged to the legal order at the time of the realization of the facts.

Therefore, it must be examined—disregarding § 9 para. 1 DSG—whether the respondents violated the second complainant's right to deletion (see decision point I), whether the respondents violated the complainants' right to information (see decision points II - IX), and whether the first respondent violated the second complainant's right to confidentiality (see decision point X).

D.2. Regarding the standing of the second complainant

If the first respondent implicitly contests the lack of standing of the second complainant due to her status as a legal entity, the following counterarguments are made:

According to § 4 para. 1 DSG, the provisions of the GDPR and the DSG apply to the wholly or partially automated processing of personal data of natural persons as well as to the non-automated processing of personal data of natural persons that are stored or are to be stored in a filing system.

According to the intent of the legislator, the statutory provisions of the DSG, including the complaint under § 24 DSG, are therefore limited to the protection of natural persons. However, the data protection authority has repeatedly stated that § 1 DSG also protects legal persons. An interpretation of the statutory provisions—particularly §§ 4 and 24 DSG—restricting the possibility of filing a complaint with the data protection authority to natural persons, while excluding legal persons, would attribute an unconstitutional content to these provisions in light of § 1 DSG, suggesting a violation of equality.

It cannot be assumed that the legislator intended to treat legal persons in a grossly disadvantageous manner compared to natural persons in the pursuit of their constitutionally guaranteed rights without a justifiable reason (see the decision of May 25, 2020, GZ 2020-0.191.240, with references).

The European Court of Justice has confirmed that it is possible for the national legislator to provide for a purely national concept of the protection of personal data of legal persons (Judgment of December 10, 2020, C-620/19, para. 47), so that the aforementioned case law of the data protection authority does not contradict this.

As a result, this means that legal persons—within the scope of the rights granted to them by § 1 DSG—are entitled to file complaints, contrary to the view of the respondents. Accordingly, the second complainant also has a right to complain regarding an alleged violation of the right to erasure according to § 1 para. 3 no. 2 DSG in conjunction with Art. 17 GDPR, regarding an alleged violation of the right to information according to § 1 para. 3 no. 1 DSG in conjunction with Art. 15 GDPR, and regarding an alleged violation of the right to confidentiality according to § 1 para. 1 DSG.

Regarding Item I

D.3. General Information on the Right to Erasure

In the absence of an implementing provision in the DSG, § 4 DSG must be considered for the interpretation of § 1 para. 3 no. 2 DSG, referring to Art. 17 GDPR.

According to Art. 17 para. 1 GDPR, every data subject has the right to request the erasure of their personal data from a controller. To assert such a request-based right, an application to the controller is required. Although the GDPR does not specify a particular form or wording for this request, it must at least be clear to the controller that it is a request based on a specific right under the GDPR, as the receipt of the application triggers obligations for the controller.

In assessing whether a request is recognizable to the controller as based on a specific right under the GDPR, the content of the request must be examined, applying the standard that also applies to unilateral private law declarations of intent.

Thus, the wording and understanding of the declaration must be viewed from an objective perspective, namely as the recipient could understand it based on its wording and purpose upon objective consideration (cf. BVwG May 3, 2018, W256 2190554-1, regarding the request for information under § 26 DSG 2000 and concerning the interpretation with reference to the case law of the OGH, e.g., OGH September 15, 1999, 9 ObA 148/99a).

D.3.1. In the Matter

According to the findings, the second complainant requested erasure from the respondents in writing on September 2, 2021 (see Item C.6.).

While these are undisputed requests for erasure and were recognized as such by the respondents, it must be assumed from an objective recipient perspective that the second complainant conducted a "change of request" after the respondents rejected the erasure.

Although the second complainant expressed regret that their request for erasure was not fulfilled, they subsequently requested information from the respondents regarding which data and business secrets were processed for what purpose and to whom they were transmitted or are to be transmitted (see Item C.9.).

Therefore, it cannot be assumed that the request for erasure remained in effect. Rather, these were

replaced by requests for information (for the requests for information, see immediately under Item D.4.).

This can also be justified by the fact that requests for information and requests for erasure have contradictory natures and thus cannot logically be pursued simultaneously.

Since the request for erasure was no longer valid at the time of filing the complaint, a violation of the right to erasure is excluded.

The complaint of the second complainant against the respondent was therefore to be dismissed in this respect due to the lack of valid requests for deletion. Even in the event that – contrary to the view of the data protection authority – one would not assume a change of request, the complaint regarding an alleged violation of the right to deletion would have to be dismissed for the following reasons: The right to deletion according to Art. 17 para. 3 lit. a GDPR does not exist insofar as the processing is necessary for the exercise of the right to freedom of expression and information. This addresses a typical and fundamental conflict of fundamental rights in data protection, which occasionally expresses itself in the fear of censorship or unjustified control. In the balancing of interests, the fundamental rights of the affected person guaranteed by Art. 7 and 8 EU Charter of Fundamental Rights (EU-CFR) as well as Art. 8 European Convention on Human Rights (ECHR) regarding respect for private and family life and the protection of personal data must be taken into account, alongside the fundamental right of the controller or third parties to freedom of expression or free information according to Art. 11 para. 1 EU-CFR and Art. 10 para. 1 ECHR (cf. Peuker in Sydow [ed.], European General Data Protection Regulation, Commentary, Art. 17, para. 59).

As can be inferred from the findings (see points C.3.-C.5.), the "email messages" targeted by the deletion requests are the core element of the media reporting of the respondent. Deleting this message would therefore destroy the core content of the media reporting. Furthermore, in the present case, the provision under Art. 17 para. 3 lit. e GDPR is also relevant, which concerns processing that may be necessary for the assertion, exercise, or defense of legal claims. It should be noted that the "defense of legal claims" – not contradicting the wording – also means "defense against legal claims." This provision applies temporally at least when the assertion, exercise, or defense of (or against) legal claims is already taking place or is certainly imminent. The mere abstract possibility of legal disputes is not sufficient (cf. Herbst in Kühling/Buchner, GDPR Commentary, Art. 17, para. 83).

According to § 32 Media Act, the criminal liability for a media content offense through the content of an accessible periodic electronic medium expires after three years, starting from the time when the dissemination of the content begins. The respondent does not refer generally to a potentially future procedure but names specific claims that could be asserted against them within a specific period. The proceedings before the data protection authority are also an indication that this data is still needed to clarify legal claims.

Regarding points II to IX

D.4. General information on the right to access

According to Art. 15 para. 1 GDPR, the data subject has the right to request confirmation from the controller as to whether personal data concerning them is being processed and, if that is the case, the data subject has the right to access this personal data and to receive the information according to lit. a to h of the same article. The right to access under Art. 15 GDPR serves as a tool that enables a data subject to become aware of the processing by a controller and to verify the lawfulness of the processing (cf. Recital 63 first sentence GDPR). In other words, the right to access allows the data subject insight into the "whether and how" of the processing (cf. Paal in Paal/Pauly [ed.], General Data Protection Regulation. Commentary, Art. 15, para. 3).

The second complainant bases their claim – as a legal entity – for access on § 1 para. 3 no. 1 Data Protection Act (DSG). This grants the data subject the right to know who processes what data about them, where it comes from, for what purpose it is used, and to whom it is transmitted.

In the absence of an implementing provision in the DSG, Art. 15 GDPR must be interpreted with regard to § 4 DSG. Since a legal entity must not be placed in a worse position than a natural person, its right to access – taking into account the peculiarities of a legal entity – must not be less than that of a

natural person.

D.4.1. On the merits

It should be noted at the outset that the letters mentioned in points C.9. and C.10. are undoubtedly requests for access, which have indisputably reached the sphere of influence of the respondents – thus they have been received by them (cf. regarding the application of the "receipt theory," the decision of the Data Protection Authority dated February 22, 2019, GZ: DSB-D124.098/0002-DSB/2019, available in the RIS).

Since it is undisputed in the present case that the respondents process personal data of the complainants within the meaning of Art. 4 no. 1 GDPR as controllers within the meaning of Art. 4 no. 7 of the same article, which also establishes a right to access according to Art. 15 GDPR or § 1 para. 3 DSG, they are fundamentally obliged to provide the complainants with information about the processed data concerning them.

personal data to the extent of Art. 15 GDPR or § 1 para. 3, as long as no other exception to the right of access exists.

At the core of their complaint regarding this matter, the complainants argue—assuming that no grounds for refusal of access exist—that they received incomplete or omitted information in connection with media reporting on September 1, 2021, pursuant to Art. 15 para. 1 and Art. 15 para. 3 GDPR or § 1 para. 3 no. 1 DSG.

It is therefore necessary to first examine to what extent the grounds for refusal of access cited by the respondents are applicable:

In this regard, the respondents consistently stated that the right to access is excluded by the editorial secrecy under Art. 15 para. 4 GDPR in conjunction with Art. 11 CFR and § 31 MediaG.

In contrast, the complainants maintained that Art. 15 para. 4 GDPR only relates to Art. 15 para. 3 GDPR and not to Art. 15 para. 1 GDPR, and that the editorial secrecy under § 31 MediaG does not apply against the complainants.

It should first be noted that the legislator of the GDPR—contrary to the latter view—has indeed allowed for a margin of discretion in the area of Art. 15 para. 1 GDPR for the balancing of interests:

Thus, the right to access under Art. 15 GDPR is initially limited to one's own data, meaning data that, according to the wording of Art. 15 para. 1 GDPR, "concerns [i.e., the data subject] personal data." Therefore, there is fundamentally still no right to access personal data of third parties unless special reasons argue otherwise in the individual case (see, for example, the decision of the Data Protection Authority dated April 18, 2019, GZ: DSB-D122.913/0001-DSB/2019).

Moreover, it is inherent in the GDPR that complaint procedures are case-by-case decisions in which potentially conflicting fundamental rights must be weighed against each other. It cannot be said that the legislator has already conducted a balancing of interests; rather, such a balancing must be carried out in the specific individual case (see the decision of the DSB dated June 1, 2022, GZ: D124.0442/22; 2022-0.277.100). A systematic interpretation of the GDPR reveals that the legislator has provided for deviations based on opening clauses and that the granted rights of the data subjects do not apply unconditionally due to the provision of Art. 1 para. 2 GDPR.

Furthermore, the Data Protection Authority refers to the following case law of the BVwG dated November 9, 2021, GZ: W176 2244155-1/5E:

According to Recital 63 of the GDPR, the exception under Art. 15 para. 4 GDPR is intended to protect trade secrets and intellectual property rights, particularly copyright in software. However, it must be assumed that all rights and freedoms recognized by Union law or the MS will generally be relevant. If the controller had to provide information about an email that also names other persons whose interests are to be rated higher, then these documents are not covered by the right of access (Haidinger in Knyrim, *DatKomm* Art. 15 GDPR [as of October 1, 2018, rdb.at] Rz 49).

Art. 15 para. 4 DSGVO stipulates that the right to receive a copy "in accordance with paragraph 3" must

not impair the rights and freedoms of other persons. This explicit reference to the right to a copy in paragraph 3 seems at first glance to contradict the previously developed systematics, as it refers only to the right to a copy and not to the substantive right of access under Art. 15 para. 1. However, this contradiction resolves itself when one considers the right to a copy as a more specific provision regarding the manner in which information about the personal data of the data subject is to be provided under Art. 15 para. 1 GDPR. Then, the obligation to conduct a balancing of interests refers to the entire substantive provision of information (Jahnel, Commentary on the GDPR, Art. 15, Rz 42).

The refusal to provide information contained under Art. 15 GDPR would therefore be justified if the confidentiality interests of the respondents or third parties outweigh the complainant's interest in access.

However, the balancing of interests must be conducted separately for each type of data required under Art. 15 para. 1 lit. a to h GDPR to allow for a verifiable review by the Data Protection Authority or a court. A blanket exclusion of all information—as indicated by the respondents—is not provided for.

Consequently, the information provided by the respondents must be examined in detail according to the aforementioned criteria.

Regarding Point II

On the provision of information by the first respondent

1) To the first complainant

a) Information about the specifically processed (master) data (Art. 15 para. 1 GDPR)

The core content of the right to access, according to Art. 15 para. 1 first sentence GDPR, is that the controller must provide the data subject with confirmation as to whether personal data concerning them is being processed and—if so—subsequently provide the data subject with the additional information mentioned in para. 1 lit. a to h.

As established, the first respondent provided the first complainant with information solely about their master data in connection with their user profile with the first respondent.

As can also be inferred from the findings (see points C.4. and C.5.), the first respondent additionally processes data of the first complainant in connection with the media coverage from September 1, 2021 (specifically: at least his name, his email address, and his former job title).

To what extent the disclosure of the - largely publicly accessible - master data is opposed by contrary interests of the first respondent is not apparent to the data protection authority and was not raised by the first respondent, so a deficiency in the information can be seen in this regard, and a violation of the right under Article 15(1) second sentence of the GDPR is present.

b) Information about the purposes of data processing (Article 15(1)(a) GDPR)

The purposes of processing within the meaning of Article 5(1)(b) GDPR must be disclosed. Although the legal basis for processing within the meaning of Article 6(1) of the same regulation or Article 9(2) of the same regulation is not explicitly mentioned as part of the information, since without this information the legality of processing cannot usually be assessed, which is the aim and purpose of the right to information (cf. Recital 63 Sentence 1 GDPR), the legal basis is included in the right to information (cf. Haidinger in Knyrim [Ed.], DatKomm, Article 15 GDPR, para. 37; as well as Jahnel in Jahnel [Ed.], Commentary on the General Data Protection Regulation, Article 15 GDPR, para. 22).

Regarding the purposes, the first respondent again refers exclusively to the user profile (see point C.10.). Since the first respondent did not mention the media coverage from September 1, 2021, in the context of its information provision and furthermore did not provide an exception as to why the already publicly known purpose of processing the data in the context of media coverage would not need to be disclosed, it can be seen that the respondent has only partially fulfilled its obligation to provide information under Article 15(1)(a) GDPR.

c) Information about the categories of personal data being processed (Article 15(1)(b) GDPR)

The controller must also specify the categories of data that are being processed. Since, according to Article 15(1) Sentence 1 GDPR, the specifically processed data must be disclosed, the added value of

the additional information under paragraph 1(b) of the same regulation lies in the fact that the data subject can quickly gain an overview of the data categories through an additional disclosure regarding the grouping or summarization by type of data (cf. Jahnel in Jahnel [Ed.], Commentary on the General Data Protection Regulation, Article 15 GDPR, para. 23; see also Haidinger in Knyrim [Ed.], DatKomm, Article 15 GDPR, para. 38).

Since the first respondent has also only disclosed data categories in connection with the user profile in this regard (see point C.10.) and, in line with what was said in point a), there is also no justifiable exception for refusing to provide information regarding the media coverage from September 1, 2021, a deficiency in the information can also be established in this point.

d) Recipients or categories of recipients (Article 15(1)(c) GDPR)

The CJEU has already stated that the right to information about the recipients or categories of recipients serves as a tool to carry out the necessary checks and, in particular, to verify whether the recipients are authorized to process the data (cf. the judgment of the CJEU of May 7, 2009, C-553/07 [Rijkeboer], para. 49).

According to Article 15(1)(c) GDPR, the controller must inform a data subject about the recipients or categories of recipients to whom the personal data have been disclosed or will be disclosed.

As can be inferred from the findings, the first respondent informed the first complainant that the data is processed by its IT service providers and by companies of the M*** group (see point C.10.).

However, the disclosure to the public inherent in the online edition from September 1, 2021 (see point C.4.) was not disclosed. It would thus at least need to be disclosed that the data has been made available to the general public in the course of the article. No opposing legitimate interest can be seen.

Whether further transmissions occurred could not be established during the investigation procedure.

The information therefore also appears to be deficient in this point.

e) Planned duration of storage (Article 15(1)(d) GDPR)

The controller must, if possible, disclose the planned duration for which the personal data will be stored, or, if this is not possible, the criteria for determining this duration.

According to the findings, the first respondent did not inform the first complainant about the duration for which the personal data will be stored or the criteria for determining this duration, either in connection with the user profile or in connection with the media coverage. No opposing legitimate interest that would justify the non-disclosure of the storage duration can be seen.

As a result, the respondent has not complied with its obligation to provide information pursuant to Art. 15 para. 1 lit. d GDPR.

f) Information about the rights of data subjects and the existence of a right to lodge a complaint with a supervisory authority (Art. 15 para. 1 lit. e and f GDPR)

The information regarding the rights of the data subject and the right to lodge a complaint with a supervisory authority must be provided without request when the data subject exercises their right to information. The information is limited to an abstract reference to these rights (cf. Haidinger in Knyrim [ed.], DatKomm, Art. 15 GDPR, para. 47; as well as Jahnel in Jahnel [ed.], Commentary on the General Data Protection Regulation, Art. 15 GDPR, para. 30).

According to the findings, the first respondent informed the first complainant about his rights as a data subject and his right to lodge a complaint with the data protection authority, which is why no deficiencies in the information can be recognized in this regard.

g) Information about the source of the personal data, if it was not collected from the data subject (Art. 15 para. 1 lit. g GDPR)

According to Art. 15 para. 1 lit. g GDPR, if the personal data is not collected from the data subject, the data subject has the right to obtain all available information about the source of the data.

The refusal to provide information about the source of the data would be justified if the confidentiality interests of the first respondent or third parties (specifically: the information source of the first

respondent) outweigh the information interest of the first complainant.

According to § 31 para. 1 Media Act (MedienG), media owners, publishers, media employees, and employees of a media company or media service have the right to refuse to answer questions in a criminal proceeding or otherwise in a proceeding before a court or an administrative authority that concern the identity of the author, submitter, or guarantor of contributions and documents or the communications made to them in relation to their activities. According to para. 2, the right mentioned in para. 1 must not be circumvented, particularly by requiring the entitled person to produce documents, printed works, audio or video recordings, data carriers, images, and other representations containing such content or by seizing them.

Since the first respondent is undisputedly a media company and providing information about the source of the data would circumvent the protection of journalistic confidentiality as stipulated in § 31 Media Act, the first respondent rightly refused to provide information in this regard.

h) Existence of automated decision-making including profiling (Art. 15 para. 1 lit. h GDPR)

The first respondent did not provide any information on this matter; however, there are no indications in the present proceedings that automated decision-making is taking place, which is why there was nothing to inform about in this regard.

i) Provision of a copy pursuant to Art. 15 para. 3 GDPR

According to Art. 15 para. 3 GDPR, the controller must provide the data subject with a copy of the personal data undergoing processing.

Regarding the alleged non-provision of a copy in the sense of Art. 15 para. 3 GDPR concerning the "email message" underlying the media reporting, which was provided to the first respondent by a third party, reference can be made to the balancing made in point g). Thus, providing a copy pursuant to Art. 15 para. 3 would also amount to circumventing the cited journalistic confidentiality.

Overall, a decision was therefore to be made accordingly.

Regarding Decision Point III

On the performance order

According to Art. 58 para. 2 lit. c GDPR, the first respondent was therefore ordered to comply with the request of the first complainant for information about his personal data – in accordance with Decision Point II.

A period of four weeks seems appropriate to comply with the performance order.

A decision was therefore to be made accordingly.

Regarding Decision Point IV

2) To the second complainant

As can be inferred from the findings, the first respondent neither provided substantive information nor any other response – in particular, no notification of the reasons for non-compliance – but remained inactive despite the successful delivery of the information request (see point C.9.).

As a result, the first respondent has violated its obligation under Art. 12 para. 3 and para. 4 GDPR and thereby infringed the second complainant's right to information according to § 1 para. 3 no. 1 DSG in conjunction with Art. 15 para. 1 GDPR.

the Zweitbeschwerdegegnerin (Second Respondent) are processed in connection with her N***-DIGITAL-SAT card and the processing of her data in relation to the request for information, the information provided was limited to this context.

In light of the processing related to the aforementioned points, the information provided was – in accordance with the findings – fully compliant with the information required by Article 15(1)(a) to (h) and Article 15(3) of the GDPR from the perspective of the data protection authority. The Zweitbeschwerdeführerin (Second Complainant) did not contest the information provided in connection with her N***-DIGITAL-SAT card and her request for information. Rather, she sees the incompleteness of the information – as already discussed at the outset – in not having received information about those personal data related to the reporting of the compromise of the mailbox of the Erstbeschwerdeführer (First Complainant).

The detailed examination with the balancing of interests concerning the Erstbeschwerdegegnerin can also be applied in connection with the media reporting on September 1, 2021, regarding the information to be provided by the Zweitbeschwerdegegner to the Erstbeschwerdeführer in light of the similar interests involved.

Specifically, regarding the media reporting of September 1, 2021, the Zweitbeschwerdegegner should have additionally provided the following information to the Erstbeschwerdeführer:

- Information about the specifically processed (basic) data (Article 15(1) GDPR)
- Information about the purposes of data processing (Article 15(1)(a) GDPR)
- Information about the categories of personal data being processed (Article 15(1)(b) GDPR)
- Recipients or categories of recipients (Article 15(1)(c) GDPR)
- Planned duration of storage (Article 15(1)(d) GDPR).

With regard to the provision of information about the origin of the personal data according to Article 15(1)(h) GDPR and Article 15(3) GDPR, reference can be made to what was stated under Spruchpunkt II, Point 1) g), and the Zweitbeschwerdegegner was justified in refusing to provide information on this point.

The complaint was therefore justified in the mentioned points, and a violation of the right to information in the stated extent was to be determined accordingly.

****To Spruchpunkt VII****

****Regarding the Performance Order****

According to Article 58(2)(c) GDPR, the Zweitbeschwerdegegner was therefore to be instructed to comply with the request of the Erstbeschwerdeführer for information about his personal data – in accordance with Spruchpunkt VI. A period of four weeks seems appropriate to comply with the performance order. It was therefore to be decided accordingly.

****To Spruchpunkt VIII****

****2) To the Zweitbeschwerdeführerin****

Since there is also a similar interest situation regarding the information provided by the Zweitbeschwerdegegner to the Zweitbeschwerdeführerin as in the information provision by the Zweitbeschwerdegegnerin to the Erstbeschwerdeführer, an information provision in the mentioned extent would also fundamentally need to be granted in this context (cf. D.4.1., "To Spruchpunkt VI" Regarding the Information Provision of the Zweitbeschwerdegegner 1) To the Erstbeschwerdeführer).

However, since the Zweitbeschwerdeführerin only requested information from the Zweitbeschwerdegegner in the sense of § 1 Abs. 3 Z 1 DSG regarding "which data and trade secrets are processed in connection with her N***-DIGITAL-SAT card," the information provided was limited to this context.

which purpose they are processed and to whom they have been transmitted or will be transmitted" and the information request delineates the standard of review for the appeal process, the completeness of the information in those points should be exclusively highlighted below.

The second respondent should therefore have provided the following information:

- Information about the specifically processed (master) data (§ 1 para. 3 in conjunction with Art. 15 para. 1 GDPR)
- Information about the purposes of data processing (§ 1 para. 3 in conjunction with Art. 15 para. 1 lit. a GDPR)
- Recipients or categories of recipients (§ 1 para. 3 in conjunction with Art. 15 para. 1 lit. c GDPR).

The appeal was therefore justified in the mentioned points, and a violation of the right to information in the specified extent was to be established accordingly.

Regarding Decision Point IX

On the Performance Order

According to Art. 58 para. 2 lit. c GDPR, the second respondent was therefore ultimately ordered to comply with the request of the second appellant for information about her personal data – in accordance with Decision Point VIII.

A period of four weeks seems appropriate to comply with the performance order. It was therefore to be decided accordingly.

Regarding Decision Point X

D.5. Regarding the alleged violation of the right to confidentiality

In this context, the second appellant seeks the establishment of an alleged violation of the right to confidentiality by the first respondent, by disclosing the receipt and content of the response to the deletion request submitted by the second appellant to the first respondent to the second respondent.

D.5.1. General Information on the Right to Confidentiality

According to § 1 para. 1 DSG, everyone has the right to confidentiality of personal data concerning them, as long as there is a legitimate interest in it. The existence of such an interest is excluded if data, due to their lack of traceability to the data subject, are not accessible to a confidentiality claim. The GDPR and, in particular, the principles enshrined therein are to be used for the interpretation of the right to confidentiality (cf. the decision of the DSB of October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal data are used in the vital interest of the data subject, the data subject has given their consent (or in the terminology of the GDPR: consent), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of a third party.

D.5.2. On the Legality of Processing

In the present case, as also implicitly stated by the first respondent, a justification for data processing based on overriding legitimate interests in the sense of § 1 para. 2 DSG or Art. 6 para. 1 lit. f GDPR is conceivable.

In this regard, an assessment of the legitimate interests of the second appellant must be made and these must be weighed against the legitimate interests of the first respondent (as well as possibly third parties).

In the context of this balancing of interests, it must be considered that two cumulative conditions must be met for the first respondent to rely on this permissive provision: on the one hand, the processing must be necessary to safeguard the legitimate interests of the controller or a third party, and on the other hand, the fundamental rights and freedoms of the affected person (specifically: the second appellant), which require the protection of personal data, must not outweigh (cf. the judgment of the CJEU of November 24, 2011, C-468/10 and C-469/10 [ASNEF and FECEMD] para. 38; see also the judgment of the CJEU of May 4, 2017, C-13/16 [Rīgas satiksme] para. 28).

In the context of the balancing of interests, it must also be considered whether a data subject could reasonably foresee at the time of the collection of personal data and in light of the circumstances under which it occurs that processing for this purpose might take place. The weighting must be done from an objective perspective and not from the subjective perspective of individual affected persons; thus, individual feelings should not be taken into account (cf. Kastelitz/Hötzendorfer/Tschohl, op. cit. para. 51).

D.5.3. On the Substance

In this context, the first respondent stated that the processing occurred due to the necessary coordination with the second respondent within the framework of the research community in its capacity as a media company.

Media play a central role as a "public watchdog" in the public interest in a democratic society (cf. e.g. ECtHR 8.11.2016 [GC], case Magyar Helsinki Bizottság, App. 18.030/11; VfGH 4.3.2021, E 4037/2020), which is why coordination within a

Research community has a legitimate interest - as an expression of the freedom of expression according to Art. 10 ECHR and Art. 11 EU Charter of Fundamental Rights - to be granted.

Art. 11 EU Charter of Fundamental Rights establishes two interrelated areas of protection: On one hand, the (active) freedom of expression of the speaker and on the other hand, the (passive) right to information of the recipient. The interaction of these two elements ensures an exchange of information and opinion in the sense of comprehensive communication freedom.

It must therefore be examined whether the legitimate interests of the first respondent – namely the exchange of information between the respondents – outweigh the interest of the second complainant in protecting her personal data.

It should first be noted that the second complainant requested both respondents on September 2, 2021, in identical requests (see point C.6.), to delete the message that formed the basis for the reporting of the respondents on September 1, 2021 (see points C.4. and C.5.). In light of the necessary reaction prompted by the requests, a uniform approach or decision regarding the deletion of the message underlying the reporting was warranted due to the identical requests and the existing research community.

Furthermore, the second complainant could have anticipated such an approach, as it was well known that the respondents were operating a research community; this fact was even presented by them in their initiating submission of November 26, 2021 (see point A.1.).

Additionally, it is not apparent to the data protection authority in what way there would be less intrusive means to achieve the intended purpose of exchanging information within the research community existing between the respondents, which is why this is the least intrusive means available.

Therefore, the data protection authority concludes that, based on the conducted balancing of interests, there is no violation of the right to confidentiality, as the interests of the first respondent (freedom of expression) outweigh the interests of the first complainant (fundamental right to confidentiality).

It was therefore decided accordingly.